

On the ethics of studying pirate cultures

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Studies such as [my Warez book](#) fall under the rubric of ‘netnographies’; work that attempt to examine ethnographically the principles and characteristics of various online cultures. A fundamental challenge of working in this space is the issue of ethics, though. Most of the documents and conversations that have been surfaced in the DeFacto2 archive were thought, by the conversation participants, to have been held in private.

The advice in Kozinets, Robert V., *Netnography: Ethnographic Research in the Age of the Internet*, 1st ed (Thousand Oaks, CA: Sage Publications Ltd, 2010) states:

- that “the archival research and download of existing posts does not strictly qualify as human subjects research. It is only where interaction or intervention occurs that consent is required” (p. 151). I do *not* believe that my work counts as human subject research and I know that there is *NO* interaction or intervention.
- that where there is a risk of harm, there are additional considerations. There is a potential risk of ‘harm’ to participants here – because what they are doing is illegal. Kozinets says that ‘studying illicit [...] communities’ constitutes studying a vulnerable group (p. 153). However, this appraisal of harm applies to interventions and interactions – of which there are, here, none. The individuals I am reading about have bragged openly – under their pseudonyms, in these documents – of their illegal activities. Law enforcement agencies *already* have access to the documents that I am studying.

- that the politics of citation and whether to reveal pseudonyms are difficult topics. That said, the pseudonyms of members of this online “community” are 1.) very old and, as far as I can tell, no longer active; but 2.) would allow attribution of statements to a pseudonym of an at-risk group (although all of this information is already available online).

The notes that I have put in for the research ethics on this project state that:

- This study examines the documents of an illegal underground culture, which is a vulnerable group. (Vulnerable to law enforcement activities.)
- This study does not interact with any members of this culture; it merely examines and describes the documents of this culture. (There are no interactions or interventions.)
- This study does not require the collection of any illegal artefacts/documents or copyright-violating material. (All material studied and collected is legal.)
- Individuals are identified by pseudonyms in the documents under study. These pseudonyms are up to twenty years old. The possessors of these pseudonyms confess to copyright violation.
- All the document that I study are publicly available. However, they were not necessarily intended to be so by the authors. Nonetheless, the risk of law enforcement activities is not intensified by my citation of the documents. Law enforcement already possess all of these documents.